

Pharmacy Council of India Regulations on Curbing the Menace of Ragging in Pharmacy Colleges, 2012

Source: <https://indiankanoon.org/doc/134197179/>

Skip to main content

Legal Document View

Tools for analyzing structure and cite text of judgments

Unlock Advanced Research with

PRISM

AI

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

Know your Kanoon

-

Doc Gen Hub

-

Counter Argument

-

Case Predict AI

-

Talk with IK Doc

-

...

Upgrade to Premium

[Cites

0

, Cited by

0

]

Union of India - Act

Pharmacy Council of India Regulations on Curbing the Menace of Ragging in Pharmacy Colleges, 2012

UNION OF INDIA

India

Pharmacy Council of India Regulations on Curbing the Menace of Ragging in Pharmacy Colleges, 2012

Rule

PHARMACY-COUNCIL-OF-INDIA-REGULATIONS-ON-CURBING-THE-MENACE-OF-RAGGING-IN-PHARMACY-COLLEGES-2012 of 2012

Published on 29 February 2012

Commenced on 29 February 2012

[This is the version of this document from 29 February 2012.]

[Note: The original publication document is not available and this content could not be verified.]

Pharmacy Council of India Regulations on Curbing the Menace of Ragging in Pharmacy Colleges, 2012

Published Vide Notification No.14-1/11 -PCI-Pt-I, New Delhi, dated 29.02.2012

Last Updated 27th January, 2020

No.14-1/11 -PCI-Pt-I. - In exercise of the powers conferred by section 10 of the Pharmacy Act, 1948 (8 of 1948) and directions of the Hon'ble Supreme Court in the matter of "University of Kerala v/s. Council, Principals, Colleges and others" in SLP no. 24295 of 2006 dated 16.05.2007 and that dated 8.05.2009 in Civil Appeal number 887 of 2009, to prohibit, prevent and eliminate the scourge of ragging, Pharmacy Council of India, with the previous approval of the

Central Government, hereby makes the following Regulations:-

1.

Short title and commencement.

- (i) These Regulations may be called the Pharmacy Council of India Regulations on Curbing the Menace of Ragging in Pharmacy Colleges, 2012.

(ii)

They shall come into force from the date of their publication in the Official Gazette.

(iii)

They shall apply to all the Pharmacy institutions established in accordance with the provisions of the Pharmacy Act, 1948 & regulations framed thereunder as amended from time to time for the purpose of imparting pharmacy education in the country and cover all the premises, whether being academic, residential, playgrounds, canteen, or other such premises of such Pharmacy Institutions whether located within the campus or outside, and to all means of transportation of students, whether public or private, accessed by students for the pursuit of studies in such Pharmacy Institutions.

Notwithstanding anything contained in the Pharmacy Act, 1948 and any of the regulations made there under as amended from time to time, it shall be the duty and responsibility of Management/Head of Institute of the Pharmacy Colleges to create a conducive atmosphere for imparting Pharmacy education to the Pharmacy students undergoing training in such colleges and take all necessary steps to prevent/prohibit/curb ragging of any type in their Pharmacy Colleges to enable students to study the vast Pharmacy Course and its various parameters and concepts of Pharmacy education in a calm and peaceful atmosphere as the Pharmacy education requires grueling studies.

2.

Objectives.

- To prohibit any conduct by any student or students whether by words spoken or written or by an act which has the effect of teasing, treating or handling with rudeness a fresher or any other student, or indulging in rowdy or indisciplined activities by any student or students which causes or is likely to cause annoyance, hardship or psychological harm or to raise fear or apprehension thereof in any fresher or any other student or asking any student to do any act which such student will not in the ordinary course do and which has the effect of causing or generating a sense of shame, or torment or embarrassment so as to adversely affect the physique or psyche of such fresher or any other student, with or without an intent to derive a sadistic pleasure or showing off power, authority or superiority by a student over any fresher or any other student; and thereby, to eliminate ragging in all its forms from Pharmacy institutions in the country by prohibiting it under these Regulations, preventing its occurrence and punishing those who indulge in ragging as provided for in these Regulations and the appropriate law in force.

3.

What constitutes Ragging.

- Ragging constitutes one or more of any of the following acts:

(a)

any conduct by any student or students whether by words spoken or written or by an act which has the effect of teasing, treating or handling with rudeness a fresher or any other student;

(b)

indulging in rowdy or indisciplined activities by any student or students which causes or is likely to cause annoyance, hardship, physical or psychological harm or to raise fear or apprehension thereof in any fresher or any other student;

(c)

asking any student to do any act which such student will not in the ordinary course do and which has the effect of causing or generating a sense of shame, or torment or embarrassment so as to adversely affect the physique or psyche of such fresher or any other student;

(d)

any act by a senior student that prevents, disrupts or disturbs the regular academic activity of any other student or a fresher;

(e)

exploiting the services of a fresher or any other student for completing the academic tasks assigned to an individual or a group of students.

(f)

any act of financial extortion or forceful expenditure burden put on a fresher or any other student by students;

(g)

any act of physical abuse including all variants of it: sexual abuse, homosexual assaults, stripping, forcing obscene and lewd acts, gestures, causing bodily harm or any other danger to health or person;

(h)

any act or abuse by spoken words, emails, post, public insults which would also include deriving perverted pleasure, vicarious or sadistic thrill from actively or passively participating in the discomfiture to fresher or any other student ;

(i)

any act that affects the mental health and self-confidence of a fresher or any other student

with or without an intent to derive a sadistic pleasure or showing off power, authority or superiority by a student over any fresher or any other student.

4.

Definitions.

(1)

In these regulations unless the context otherwise requires,-

(a)

"Act" means, the Pharmacy Act, 1948 (8 of 1948);

(b)

"Academic year" means the period from the commencement of admission of students in Pharmacy course of study in the Pharmacy institution up to the completion of academic requirements for that particular year.

(c)

"Anti-Ragging Helpline" means the Helpline established by the UGC under UGC Regulations on curbing the menace of ragging in Higher Educational Institutions, 2009 under UGC Act 1956

(d)

"Central Council" means Pharmacy Council of India constituted under section 3 of the Pharmacy Act 1948.

(e)

"Head of the institution" means the Vice-Chancellor in case of a university or a deemed to be university, the Principal or the Director or the HOI/HOD or such other designation as the executive head of the institution or the college is referred.

(f)

"Fresher" means a student who has been admitted to an institution and who is undergoing his/her first year of study in such institution.

(g)

"Institution" means a Pharmacy institution established in accordance with provision of the Pharmacy Act 1948 & regulations made thereunder as amended from the time to time for the purpose of imparting Pharmacy Education in the country. j) University - means a university within the meaning of section 3 of the University Grants Commission Act, 1956 (

3 of 1956

) and includes such other institutions, being institutions established by or under a Central Act, as the Central Government may, by notification in the Official Gazette, specify in this behalf and Pharmacy examination conducting authority conducting approved Pharmacy examination u/s 12 (2) of the Pharmacy Act 1948. k) Examining Authority - means an Pharmacy examination conducting authority conducting approved Pharmacy examination u/s 12 (2) of the Pharmacy Act 1948.

(2)

Words and expressions used and not defined herein but defined in the Act or in the General Clauses Act, 1897, shall have the meanings respectively assigned to them in the Act or in the General Clauses Act, 1897, as the case may be.

5.

Measures for prohibition of ragging at the institution level.

(a)

No institution or any part of it thereof, including its elements, including, but not limited to, the departments, constituent units, colleges, centers of studies and all its premises, whether academic, residential, playgrounds, or canteen, whether located within the campus or outside, and in all means of transportation of students, whether public or private, accessed

by students for the pursuit of studies in such institutions, shall permit or condone any reported incident of ragging in any form; and all institutions shall take all necessary and required measures, including but not limited to the provisions of these Regulations, to achieve the objective of eliminating ragging, within the institution or outside,

(b)

All institutions shall take action in accordance with these Regulations against those found guilty of ragging and/or abetting ragging, actively or passively, or being part of a conspiracy to promote ragging.

6.

Measures for prevention of ragging at the institution level.

- 6.1 An institution shall take the following steps in regard to admission or registration of students; namely,

(a)

Every public declaration of intent by any institution, in any electronic, audiovisual or print or any other media, for admission of students to Pharmacy Course shall expressly provide that ragging is totally prohibited in the institution, and anyone found guilty of ragging and/or abetting ragging, whether actively or passively, or being a part of a conspiracy to promote ragging, is liable to be punished in accordance with these Regulations as well as under the provisions of any penal law for the time being in force.

(b)

The brochure of admission/instruction booklet or the prospectus, whether in print or electronic format, shall prominently print these Regulations in full.

Provided that the institution shall also draw attention to any law concerning ragging and its consequences, as may be applicable to the institution publishing such brochure of admission/instruction booklet or the prospectus.

Provided further that the telephone numbers of the Anti-Ragging Helpline and all the important functionaries in the institution, including but not limited to the Head of the institution, faculty members, members of the Anti-Ragging Committees and Anti-Ragging Squads, District and Sub-Divisional authorities, Wardens of hostels, and other functionaries or authorities where relevant, shall be published in the brochure of admission/instruction booklet or the prospectus.

(c)

Where an institution is affiliated to a University/Examining Authority and publishes a brochure of admission/instruction booklet or a prospectus, the affiliating university/Examining Authority shall ensure that the affiliated institution shall comply with the provisions of clause (a) and clause (b) of Regulation 6.1 of these Regulations.

(d)

The application form for admission, enrollment or registration shall contain an affidavit, mandatorily in English and in Hindi and/or in one of the regional languages known to the applicant, as provided in the English language in Annexure-I to these Regulations, to be filled up and signed by the applicant to the effect that he/she has read and understood the provisions of these Regulations as well as the provisions of any other law for the time being in force, and is aware of the prohibition of ragging and the punishments prescribed, both under penal laws as well as under these Regulations and also affirm to the effect that he/she has not been expelled and/or debarred by any institution and further aver that he/she would not indulge, actively or passively, in the act or abet the act of ragging and if found guilty of ragging and/or abetting ragging, is liable to be proceeded against under these Regulations or under any penal law or any other law for the time being in force and such action would include but is not limited to debarment or expulsion of such student.

(e)

The application form for admission, enrollment or registration shall contain an affidavit, mandatorily in English and in Hindi and/or in one of the regional languages known to the parents/guardians of the applicant, as provided in the English language in Annexure-II to these Regulations, to be filled up and signed by the parents/guardians of the applicant to the effect that he/she has read and understood the provisions of these Regulations as well as the provisions of any other law for the time being in force, and is aware of the prohibition of ragging and the punishments prescribed, both under penal laws as well as under these

Regulations and also affirm to the effect that his/her ward has not been expelled and/or debarred by any institution and further aver that his/her ward would not indulge, actively or passively, in the act or abet the act of ragging and if found guilty of ragging and/or abetting ragging, his/her ward is liable to be proceeded against under these Regulations or under any penal law or any other law for the time being in force and such action would include but is not limited to debarment or expulsion of his/her ward.

(f)

The application for admission shall be accompanied by a document in the form of, or annexed to, the School Leaving Certificate/Transfer Certificate/Migration Certificate/Character Certificate reporting on the inter-personal/social behavioral pattern of the applicant, to be issued by the school or institution last attended by the applicant, so that the institution can thereafter keep watch on the applicant, if admitted, whose behaviour has been commented in such document.

(g)

A student seeking admission to a hostel forming part of the institution, or seeking to reside in any temporary premises not forming part of the institution, including a private commercially managed lodge or hostel, shall have to submit additional affidavits countersigned by his/her parents/guardians in the form prescribed in Annexure-I and Annexure-II to these Regulations respectively alongwith his/her application.

(h)

Before the commencement of the academic session in institution, the Head of the Institution shall convene and address a meeting of various functionaries/agencies, such as Hostel Wardens, representatives of students, parents/ guardians, faculty, district administration including the police, to discuss the measures to be taken to prevent ragging in the institution and steps to be taken to identify those indulging in or abetting ragging and punish them.

(i)

The institution shall, to make the community at large and the students in particular aware of the dehumanizing effect of ragging, and the approach of the institution towards those indulging in ragging, prominently display posters depicting the provisions of penal law applicable to incidents of ragging, and the Provisions of these Regulations and also any other law for the time being in force, and the punishments thereof, shall be prominently displayed on Notice Boards of all departments, hostels and other buildings as well as at places, where students normally gather and at places, known to be vulnerable to occurrences of ragging incidents.

(j)

The institution shall request the media to give adequate publicity to the law prohibiting ragging and the negative aspects of ragging and the institution's resolve to ban ragging and punish those found guilty without fear or favour.

(k)

The institution shall identify, properly illuminate and keep a close watch on all locations known to be vulnerable to occurrences of ragging incidents.

(l)

The institution shall tighten security in its premises, especially at vulnerable places and intense policing by Anti-Ragging Squad, referred to in these Regulations and volunteers, if any, shall be resorted to at such points at odd hours during the first few months of the academic session.

(m)

The institution shall utilize the vacation period before the start of the new academic year to launch a publicity campaign against ragging through posters, leaflets and such other means, as may be desirable or required, to promote the objectives of these Regulations.

(n)

The faculties/departments/units of the institution shall have induction arrangements, including those which anticipate, identify and plan to meet any special needs of any specific section of students, in place well in advance of the beginning of the academic year with an aim to promote the objectives of this Regulation.

(o)

Every institution shall engage or seek the assistance of professional counsellors before the commencement of the academic session, to be available when required by the institution, for the purposes of offering counselling to freshers and to other students after the commencement of the academic year.

(p)

The head of the institution shall provide information to the local police and local authorities, the details of every privately commercially managed hostels or lodges used for residential purposes by students enrolled in the institution and the head of the institution shall also ensure that the Anti-Ragging Squad shall ensure vigil in such locations to prevent the occurrence of ragging therein.

6.2

An institution shall, on admission or enrollment or registration of students, take the following steps, namely;

(a)

Every fresh student admitted to the institution shall be given a printed leaflet detailing to whom he/she has to turn to for help and guidance for various purposes including addresses and telephone numbers, so as to enable the student to contact the concerned person at any time, if and when required, of the Anti-Ragging Helpline referred to in these Regulations, Wardens, Head of the institution, all members of the anti-ragging squads and committees, relevant district and police authorities.

(b)

The institution, through the leaflet specified in clause (a) of Regulation 6.2 of these Regulations shall explain to the freshers, the arrangements made for their induction and orientation which promote efficient and effective means of integrating them fully as students with those already admitted to the institution in earlier years.

(c)

The leaflet specified in clause (a) of Regulation 6.2 of these Regulations shall inform the freshers about their rights as bona fide students of the institution and clearly instructing them that they should desist from doing anything, with or against their will, even if ordered to by the seniors students, and that any attempt of ragging shall be promptly reported to the Antiragging Squad or to the Warden or to the Head of the institution, as the case may be.

(d)

The leaflet specified in clause (a) of Regulation 6.2 of these Regulations shall contain a calendar of events and activities laid down by the institution to facilitate and complement familiarization of freshers with the academic environment of the institution.

(e)

The institution shall, on the arrival of senior students after the first week or after the second week, as the case may be, schedule orientation programmes as follows, namely; (i) joint sensitization programme and counselling of both freshers and senior students by a professional counsellor, referred to in clause (o) of Regulation 6.1 of these Regulations; (ii) joint orientation programme of freshers and seniors to be addressed by the Head of the institution and the anti-ragging committee; (iii) organization on a large scale of cultural, sports and other activities to provide a platform for the freshers and seniors to interact in the presence of faculty members; (iv) in the hostel, the warden should address all students; and may request two junior colleagues from the college faculty to assist the warden by becoming resident tutors for a temporary duration. (v) as far as possible faculty members should dine with the hostel residents in their respective hostels to instil a feeling of confidence among the freshers.

(f)

The institution shall set up appropriate committees, including the course-in-charge, student advisor, Wardens and some senior students as its members, to actively monitor, promote and regulate healthy interaction between the freshers, junior students and senior students.

(g)

Freshers or any other student(s), whether being victims, or witnesses, in any incident of ragging, shall be encouraged to report such occurrence, and the identity of such informants shall be protected and shall not be subject to any adverse consequence only for the reason for having reported such incidents.

(h)

Each batch of freshers, on arrival at the institution, shall be divided into small groups and each such group shall be assigned to a member of the faculty, who shall interact individually with each member of the group every day for ascertaining the problems or difficulties, if any, faced by the fresher in the institution and shall extend necessary help to the fresher in overcoming the same.

(i)

It shall be the responsibility of the member of the faculty assigned to the group of freshers, to coordinate with the Wardens of the hostels and to make surprise visits to the rooms in such hostels, where a member or members of the group are lodged; and such member of faculty shall maintain a diary of his/her interaction with the freshers under his/her charge.

(j)

Freshers shall be lodged, as far as may be, in a separate hostel block, and where such facilities are not available, the

institution shall ensure that access of seniors to accommodation allotted to freshers is strictly monitored by wardens, security guards and other staff of the institution.

(k)

A round the clock vigil against ragging in the hostel premises, in order to prevent ragging in the hostels after the classes are over, shall be ensured by the institution.

(l)

It shall be the responsibility of the parents/guardians of freshers to promptly bring any instance of ragging to the notice of the Head of the Institution.

(m)

Every student studying in the institution and his/her parents/guardians shall provide the specific affidavits required under clauses (d), (e) and (g) of Regulation 6.1 of these Regulations at the time of admission or registration, as the case may be, during each academic year.

(n)

Every institution shall obtain the affidavit from every student as referred to above in clause (m) of Regulation 6.2 and maintain a proper record of the same

and to ensure its safe upkeep thereof, including maintaining the copies of the affidavit in an electronic form, to be accessed easily when required either by the Commission or any of the Councils or by the institution or by the affiliating University or by any other person or organisation authorized to do so.

(o)

Every student at the time of his/her registration shall inform the institution about his/her place of residence while pursuing the course of study, and in case the student has not decided his/her place of residence or intends to change the same, the details of his place of residence shall be provided immediately on deciding the same; and specifically in regard to a private commercially managed lodge or hostel where he/she has taken up residence.

(p)

The Head of the institution shall, on the basis of the information provided by the student under clause (o) of Regulation 6.2, apportion sectors to be assigned to members of the faculty, so that such member of faculty can maintain vigil and report any incident of ragging outside the campus or en route while commuting to the institution using any means of transportation of students, whether public or private.

(q)

The Head of the institution shall, at the end of each academic year, send a letter to the parents/guardians of the students who are completing their first year in the institution, informing them about these Regulations and any law for the time being in force prohibiting ragging and the punishments thereof as well as punishments prescribed under the penal laws, and appealing to them to impress upon their wards to desist from indulging in ragging on their return to the institution at the beginning of the academic session next.

6.3

Every institution shall constitute the following bodies; namely,

(a)

Every institution shall constitute a Committee to be known as the Anti- Ragging Committee to be nominated and headed by the Head of the institution, and consisting of representatives of civil and police administration, local media, Non Government Organizations involved in youth activities, representatives of faculty members, representatives of parents, representatives of students belonging to the freshers' category as well as senior students, non-teaching staff; and shall have a diverse mix of membership in terms of levels as well as gender.

(b)

It shall be the duty of the Anti-Ragging Committee to ensure compliance with the provisions of these Regulations as well as the provisions of any law for the time being in force concerning ragging; and also to monitor and oversee the performance of the Anti-Ragging Squad in prevention of ragging in the institution.

(c)

Every institution shall also constitute a smaller body to be known as the Anti- Ragging Squad to be nominated by the Head of the Institution with such representation as may be considered necessary for maintaining vigil, oversight and patrolling functions and shall remain mobile, alert and active at all times. Provided that the Anti-Ragging Squad shall have representation of various members of the campus community and shall have no outside representation.

(d)

It shall be the duty of the Anti-Ragging Squad to be called upon to make surprise raids on hostels, and other places vulnerable to incidents of, and having the potential of, ragging and shall be empowered to inspect such places.

(e)

It shall also be the duty of the Anti-Ragging Squad to conduct an on-the-spot enquiry into any incident of ragging referred to it by the Head of the institution or any member of the faculty or any member of the staff or any student or any parent or guardian or any employee of a service provider or by any other person, as the case may be; and the enquiry report along with recommendations shall be submitted to the Anti-Ragging Committee for action under Regulation 8.1.

Provided that the Anti-Ragging Squad shall conduct such enquiry observing a fair and transparent procedure and the principles of natural justice and after giving adequate opportunity to the student or students accused of ragging and other witnesses to place before it the facts, documents and views concerning the incident of ragging, and considering such other relevant information as may be required.

(f)

Every institution shall, at the end of each academic year, in order to promote the objectives of these Regulations, constitute a Mentoring Cell consisting of students volunteering to be Mentors for freshers, in the succeeding academic year; and there shall be as many levels or tiers of Mentors as the number of batches in the institution, at the rate of one Mentor for six freshers and one Mentor of a higher level for six Mentors of the lower level.

(g)

Every University/examining authority shall constitute a body to be known as Monitoring Cell on Ragging, which shall coordinate with the affiliated colleges and institutions under the domain of the University/Examining Authority to achieve the objectives of these Regulations; and the Monitoring Cell shall call for reports from the Heads of institutions in regard to the activities of the Anti-Ragging Committees, Anti -Ragging Squads, and the Mentoring Cells at the institutions.

(h)

The Monitoring Cell shall also review the efforts made by institutions to publicize anti-ragging measures, soliciting of affidavits from parents/guardians and from students, each academic year, to abstain from ragging activities or willingness to be penalized for violations; and shall function as the prime mover for initiating action on the part of the appropriate authorities of the university for amending the Statutes or Ordinances or Bye-laws to facilitate the implementation of anti-ragging measures at the level of the institution.

6.4

Every institution shall take the following other measures, namely;

(a)

Each hostel or a place where groups of students reside, forming part of the institution, shall have a full-time Warden, to be appointed by the institution as per the eligibility criteria laid down for the post reflecting both the command and control aspects of maintaining discipline and preventing incidents of ragging within the hostel, as well as the softer skills of counselling and communicating with the youth outside the classroom situation; and who shall reside within the hostel, or at the very least, in the close vicinity thereof.

(b)

The Warden shall be accessible at all hours and be available on telephone and other modes of communication, and for the purpose the Warden shall be provided with a mobile phone by the institution, the number of which shall be publicised among all students residing in the hostel.

(c)

The institution shall review and suitably enhance the powers of Wardens; and the security personnel posted in hostels shall be under the direct control of the Warden and their performance shall be assessed by them.

(d)

The professional counsellors referred to under clause (o) of Regulation 6.1 of these Regulations shall, at the time of admission, counsel freshers and/or any other student(s) desiring counselling, in order to prepare them for the life ahead, particularly in regard to the life in hostels and to the extent possible, also involve parents and teachers in the counselling sessions.

(e)

The institution shall undertake measures for extensive publicity against ragging by means of audio-visual aids, counselling sessions, workshops, painting and design competitions among students and such other measures, as it may

deem fit.

(f)

In order to enable a student or any person to communicate with the Anti-Ragging Helpline, every institution shall permit unrestricted access to mobile phones and public phones in hostels and campuses, other than in class-rooms, seminar halls, library, and in such other places that the institution may deem it necessary to restrict the use of phones.

(g)

The faculty of the institution and its non-teaching staff, which includes but is not limited to the administrative staff, contract employees, security guards and employees of service providers providing services within the institution, shall be sensitized towards the ills of ragging, its prevention and the consequences thereof.

(h)

The institution shall obtain an undertaking from every employee of the institution including all teaching and non-teaching members of staff, contract labour employed in the premises either for running canteen or as watch and ward staff or for cleaning or maintenance of the buildings/ lawns and employees of service providers providing services within the institution, that he/she would report promptly any case of ragging which comes to his/her notice.

(i)

The institution shall make a provision in the service rules of its employees for issuing certificates of appreciation to such members of the staff who report incidents of ragging, which will form part of their service record.

(j)

The institution shall give necessary instructions to the employees of the canteens and mess, whether that of the institution or that of a service provider providing this service, or their employers, as the case may be, to keep a strict vigil in the area of their work and to report the incidents of ragging to the Head of the institution or members of the Anti-Ragging Squad or members of the Anti-Ragging Committee or the Wardens, as may be required.

(k)

All Universities/Examining Authority awarding a degree/diploma at any level, shall be required to ensure that institutions imparting instruction in such courses or conducting training programme for teachers include inputs relating to antiragging and the appreciation of the relevant human rights, as well as inputs on topics regarding sensitization against corporal punishments and checking of bullying amongst students, so that every teacher is equipped to handle at least the rudiments of the counselling approach.

(l)

Discreet random surveys shall be conducted amongst the freshers every fortnight during the first three months of the academic year to verify and crosscheck whether the institution is indeed free of ragging or not and for the purpose the institution may design its own methodology of conducting such surveys.

(m)

The institution shall cause to have an entry, apart from those relating to general conduct and behaviour, made in the Migration/Transfer Certificate issued to the student while leaving the institution, as to whether the student has been punished for committing or abetting an act of ragging, as also whether the student has displayed persistent violent or aggressive behaviour or any inclination to harm others, during his course of study in the institution.

(n)

Notwithstanding anything contained in these Regulations with regard to obligations and responsibilities pertaining to the authorities or members of bodies prescribed above, it shall be the general collective responsibility of all levels and sections of authorities or functionaries including members of the faculty and employees of the institution, whether regular or temporary, and employees of service providers providing service within the institution, to prevent or to act promptly against the occurrence of ragging or any incident of ragging which comes to their notice.

(o)

The Heads of institutions affiliated to a University or a constituent of the University or Examining Authority, as the case may be, shall, during the first three months of an academic year, submit a weekly report on the status of compliance with Anti-Ragging measures under these Regulations, and a monthly report on such status thereafter, to the Vice-Chancellor of the University/Examining Authority to which the pharmacy institution is affiliated to.

7.

Action to be taken by the Head of the institution.

- On receipt of the recommendation of the Anti Ragging Squad or on receipt of any information concerning any reported

incident of ragging, the Head of institution shall immediately determine if a case under the penal laws is made out and if so, either on his own or through a member of the Anti-Ragging Committee authorised by him in this behalf, proceed to file a First Information Report (FIR), within twenty four hours of receipt of such information or recommendation, with the police and local authorities, under the appropriate penal provisions relating to one or more of the following, namely;

- i. Abetment to ragging;
- ii. Criminal conspiracy to rag;
- iii. Unlawful assembly and rioting while ragging;
- iv. Public nuisance created during ragging;
- v. Violation of decency and morals through ragging;
- vi. Injury to body, causing hurt or grievous hurt;
- vii. Wrongful restraint;
- viii. Wrongful confinement;
- ix. Use of criminal force;
- x. Assault as well as sexual offences or unnatural offences;
- xi. Extortion;
- xii. Criminal trespass;
- xiii. Offences against property;
- xiv. Criminal intimidation;
- xv. Attempts to commit any or all of the above mentioned offences against the victim(s);
- xvi. Threat to commit any or all of the above mentioned offences against the victim(s);
- xvii. Physical or psychological humiliation;
- xviii. All other offences following from the definition of "Ragging".

Provided that the Head of the institution shall forthwith report the occurrence of the incident of ragging to the Vice-Chancellor of the University or Examining Authority as the case may be.

Provided further that the institution shall also continue with its own enquiry initiated under clause 8 of these Regulations and other measures without waiting for action on the part of the police/local authorities and such remedial action shall be initiated and completed immediately and in no case later than a period of seven days of the reported occurrence of the incident of ragging.

8.

Punishments.

- 8.1 At the institution level. - Depending upon the nature and gravity of the offence as established by the Anti-Ragging Committee of the institution, the possible punishments for those found guilty of ragging at the institution level shall be any one or any combination of the following:

8.1.1

Suspension from attending classes and academic privileges

8.1.2

Withholding/withdrawing scholarship/fellowship and other benefits

8.1.3

Debarring from appearing in any test/examination or other evaluation process

8.1.4

Withholding results

8.1.5

Debarring from representing the institution in any regional, national or international meet, tournament, youth festival, etc.

8.1.6

Suspension/expulsion from the hostel

8.1.7

Cancellation of admission

8.1.8

Rustication from the institution for the period as decided

8.1.9

Expulsion from the institution and consequent debarring from admission to any other institution for a specified period

8.1.10

Fine ranging between Rupees 25,000/- and Rupees 1 lakh

8.1.11

Collective punishment: When the persons committing or abetting the crime of ragging are not identified, the institution shall resort to collective punishment.

8.2

At the university/examining authority level in respect of institutions affiliated to. - If an institution fails to comply with any of the provisions of these Regulations and fails to curb ragging effectively, the university/examining authority shall impose any one or any combination of the following penalties on it:

8.2.1

Withdrawal of affiliation and/or other privileges conferred on it

8.2.2

Prohibiting such institution from presenting any students then undergoing pharmacy course therein for the award of any degree/diploma of the university/examining authority

8.2.3

Withholding grants allocated to it by the university/examining authority, if any

8.2.4

Withholding any grants channelised through the university/examining authority to the institution, if any

8.2.5

Any other appropriate penalty within the powers of the university/ examining authority

8.3

At the Management level. - The authorities/Management (Trust, Societies, etc.) of the institution, particularly the Head of the institution, shall be responsible to ensure that no incident of ragging takes place in the institution. In case any incident of ragging takes place, the Management/Head shall take prompt and appropriate action against the person(s) whose dereliction of duty lead to the incident. The authority designated to appoint the Head shall, in its turn, take prompt and appropriate action against the Head.

8.4

At the PCI level. - If an institution fails to curb ragging, the Pharmacy Council of India shall impose any one or any combination of the following penalties on it:

8.4.1

To initiate the action regarding withdrawal of approval against the institution under section 13 of the Pharmacy Act, 1948.

8.4.2

To reduce the admission capacity of the institution to the extent to which the Central Council deem fit.

8.4.3

To stop further admission in the institution till further orders.

8.4.4

To stop renewal of approval.

8.4.6

To post the information regarding penalties so imposed on the concerned institution on the website of PCI for information of all concerned.

9.

Submission of Reports to PCI.

- The each and every institution shall submit its reports in prescribed format (Annexure-III) to the Registrar-cum-Secretary, Pharmacy Council of India, Aiwana-E-Galib Marg, Kotla Road, New Delhi-110002, as per the following time schedule:-

9.1

by 31st October of every year in which admissions are made, indicating the action taken by institution for implementation of Regulation 6 of these Regulations failing which action referred to in Regulation 8.4 would be initiated against defaulting institution; and

9.2

by 30th April of every year in respect of the previous academic session, in the prescribed format (Annexure-III), indicating the requisite information against each column thereof, failing which action mentioned in Regulation 8.4 would be initiated against defaulting institution.

Annexure-I

Undertaking By The Candidate/student
(Duly Attested by the Oath Commissioner)

1. I, _____
S/o. _____ D/o. _____ of
Mr./Mrs./Ms. _____ have
carefully read and fully understood the law prohibiting ragging and the directions of the Hon'ble Supreme Court and the Central/State Government in this regard.

2. I have received a copy of the Pharmacy Council of India Regulations on Curbing the Menace of Ragging in Pharmacy Colleges, 2012, and have carefully gone through it.

3. I hereby undertake that

? I will not indulge in any behaviour or act that may come under the definition of ragging,

? I will not participate in or abet or propagate ragging in any form,

? I will not hurt anyone physically or psychologically or cause any other harm.

4. I hereby agree that if found guilty of any aspect of ragging, I may be punished as per the provisions of the PCI Regulations mentioned above and/or as per the law in force.

5. I hereby affirm that I have not been expelled or debarred from admission by any institution.

Signed this _____ day of _____ month of _____ year

Name:

Address:

Signature

Annexure-II

Undertaking By The Parent/guardian
(Duly Attested by the Oath Commissioner)

1. I, _____ F/o. M/o. G/o _____ have carefully read and fully understood the law prohibiting ragging and the directions of the Hon'ble Supreme Court and the Central/State Government in this regard as well as the Pharmacy Council of India Regulations on Curbing the Menace of Ragging in Pharmacy Colleges, 2012.

2. I assure you that my son/daughter/ward will not indulge in any act of ragging.

3. I hereby agree that if he/she is found guilty of any aspect of ragging, he/she may be punished as per the provisions of the PCI Regulations mentioned above and/or as per the law in force.

Signed this _____ day of _____ month of _____ year

Name:

Address:

Signature

Annexure-III

Proforma for monitoring the directions of Hon'ble Supreme Court of India on measures Ragging in educational institutions.

S. No.

Name of the Institution and complete address and telephone nos.

Name of the Principal/Dean with their Direct contact nos.

Action

1.

Whether Anti Ragging Squads were constituted?

Yes / No

2.

Whether Anti Ragging Committee were constituted?

Yes / No

3.

Whether prospectus mention possible actions against Ragging?

Give brief details (Copy of the Prospectus be enclosed)

4.

Whether names, telephone nos. of authorities to be contacted have been publicized/made available to Freshers.

- Do -

5.

Whether students are allowed free access to phones (Cell & Land-line) in hostel(s) for timely reporting.

- Do -

6.

Whether Seniors counselled.

- Do -

7.

Whether Freshers counselled.

- Do -

8.

Whether orientation courses for Freshers conducted.

- Do -

9.

Anti Ragging Squads 9(a) Date of formation

9(b) Name of Member

and their contact nos.

9(c) No. of raids

9(d) Frequency of raids

9(e) Surprise raids

9(f) Other measures taken by the squad

9(g) No. of cases detected

9(h) Action taken as follow up

10.

Anti Ragging Committee

10(a) Date of formation

10(b) Name of Member and their contact nos.

10(c) No. of raids

10(d) Frequency of raids

10(e) Surprise raids

10(f) Other measures taken by the squad

10(g) No. of cases

detected

10(h) Action taken as follow up

11.

Inquiry(ies) Conducted.

12.

Punishment meted out.

12(a) Suspension

12(b) Rustication

12(c) Expulsion

13.

No. of F.I.R.(s) lodged by Institution with details.

14.

Whether Undertaking received from all the Students before the admission? (As per Annexure I, Part I)

Yes / No

15.

Whether Undertaking received from all the Parent/Guardian before the admission? (As per Annexure I, Part II)

Yes / No

Signature of Principal with Stamp

Related AI tags, queries and research notes

Translation